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NordicMail AS — Pre-disclosure Counsel Memo (PRIVILEGED & CONFIDENTIAL)

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BINGLEY & HOEK LLP — Advokatfirma · Oslo

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Memorandum

To : Henrik Solberg (CEO, NordicMail AS); Ingrid Aas (General Counsel)
From : Ada M. Bingley — abingley@bingleyhoek.no
Jonas Hoek — jhoek@bingleyhoek.no
Subject : NordicMail AS — Incident response, notification timing and counterparty risk
Date : 2026-01-24
Matter : 2026-NMS-001

Privilege notice

This memorandum has been prepared by counsel at the direction of the Board of NordicMail AS in contemplation of regulatory inquiry and likely civil litigation arising from the incident first detected on 2026-01-22. It is privileged work product. It must not be forwarded outside the named recipients without prior written consent from this firm. Any inadvertent disclosure should be reported to the authoring partner immediately.

Executive summary

We have been retained to advise on (i) the timing and form of notification to Datatilsynet under the GDPR 72-hour rule, (ii) the timing and form of customer notification under contractual terms, and (iii) collateral risks arising from the particular categories of data implicated.

Our preliminary view is that:

- (a) Notification to Datatilsynet should be filed within the 72-hour window, conservatively measured from your team's confirmed detection on 2026-01-22 17:42 CET. Filing target: 2026-01-25 17:00 CET. We have prepared a draft notification (Annex A) that should be reviewed in the next 36 hours.
- (b) Customer notification, in our view, is not strictly required within 72 hours. Article 34 imposes notification only where the breach is 'likely to result in a high risk' to data subjects. The contents of the exfiltrated message bodies have been sampled (cf. forensic interim report 2026-01-23, Hetherington Stratford) and consist substantially of transactional notifications (order confirmations, password resets, OTPs that have since expired). The high-risk

threshold is, in our considered view, contestable here.

- (c) That said, your contractual obligations to enterprise customers, particularly those whose own customers' PII would be re-identifiable from message bodies (notably HelvetiaPay AG and Sentinex IAM Ltd, both flagged in the customer-use review of 2025-Q4), impose tighter notification windows than GDPR — in some cases as short as 24 hours from confirmed detection.

Recommendation

1. File the Datatilsynet notification by 2026-01-25 17:00. Use the conservative framing in Annex A — incident scope 'under active investigation', root cause 'not yet definitively determined'. Avoid speculative attribution.
2. Notify enterprise customers whose contractual notification windows are 24-48 hours on 2026-01-25, in parallel. Letter template at Annex B.
3. Defer broader customer notification (to all account holders) by 5-7 days, to allow remediation steps (credential rotation prompts, OTP system cooldown) to be completed first and to avoid causing notification-driven secondary attacks.
4. Do not issue any public statement until the regulator filing is confirmed received and the enterprise notifications have been despatched. We will draft a holding statement for the website and press inquiries (Annex C, in progress).

Two considerations counsel particular caution on the deferred customer notification (item 3 above):

- Datatilsynet has in two recent enforcement actions criticised delays it considered unjustifiable. We assess the 5-7 day window as defensible if documented, but it is not without risk.
- The reputational cost of a press leak of the breach before customer notice would be materially worse than an early but controlled customer notice. We therefore recommend monitoring the security press and exchanges for any sign of leak, and accelerating customer notification at the first indicator.

Counterparty-specific notes

HelvetiaPay AG (Switzerland — FINMA-supervised): we suggest you contact Lukas Brunner (CEO) personally before the formal contractual notification is sent. Our Zürich correspondent firm (Müller Wenger AG) can broker the call.

Sentinex IAM Ltd: in light of their own ongoing incident (IR-2025-091), the notification should be coordinated with their General Counsel (we understand to be supported by Walsh Lawless LLP in Dublin).

Fees

Engagement letter sent 2026-01-23, awaiting countersignature. Fees estimated NOK 1,650,000 — NOK 2,800,000 through completion of the regulatory phase, billed monthly, hourly rates per engagement letter.

Ada M. Bingley

Partner, Bingley & Hoek LLP

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